

This form is used to tell the court you are authorized to appear for a plaintiff or defendant in a small claims case. You may also use this form to ask the court for permission to help a plaintiff or defendant who cannot properly present their claim or defense. If you are a lawyer, you can appear only as authorized by Code of Civil Procedure section 116.530.

After you fill out this form, file it with the small claims clerk at or before the trial.

Clerk stamps date here when form is filed.

Fill in court name and street address:

Superior Court of California, County of

Fill in your case number and case name below:

Case Number:

Case Name:

1 Your name, address, and position:

Name: _____

Address: _____

Job title or relationship to the plaintiff or defendant you want to appear for or assist:

2 Who are you appearing for?

☐ A plaintiff in this case (*name*):

☐ A defendant in this case (*name*):

3 Tell us about the plaintiff or defendant you are appearing for.

I am authorized to appear for a (*check one; if you are asking to appear in court to assist a plaintiff or defendant who cannot properly present their claim or defense without assistance, skip this item and complete ④ instead*):

- a. ☐ **Corporation** and I am an employee, officer, or director of that corporation. Representing the corporation in small claims court is not the only duty of my job.
- b. ☐ **Partnership** and I am an employee, officer, director, or partner of that partnership. Representing the partnership in small claims court is not the only duty of my job.
- c. ☐ **Other business** (not a corporation, partnership, or sole proprietorship) and I am an employee, officer, or director of that business. Representing the business in small claims court is not the only duty of my job.
- d. ☐ **Government agency or other public entity** and I am an employee, officer, or director of that agency or entity. Representing the agency or entity in small claims court is not the only duty of my job.
- e. ☐ **Sole proprietorship** and I am an employee of that business. I am qualified to testify about business records made in the regular course of business at or near the time of the event. (Evid. Code, § 1271.) The content of the business records is the only issue in this case. Representing the business in small claims court is not the only duty of my job.
- f. ☐ **Owner of rental property in California** who employs me as a property agent. This claim is about the rental property I manage. Representing the owner in small claims court is not the only duty of my job.
- g. ☐ **Association** created to manage a common interest development and I am an agent, management company representative, or bookkeeper for that association. Representing the association in small claims court is not the only duty of my job.

(More options on next page)



- 3

☐

Plaintiff who is assigned to active duty in the U.S. armed forces in a location more than 100 miles from the court where the action is proceeding, or is otherwise unable to personally appear due to the performance of military duty, and *(check one)*:

☐ I am not being paid to appear. I have not appeared in small claims court for other people more than 4 times in this calendar year.

☐ I am employed by the United States or the State of California. I am not being paid to appear, other than compensation I receive from the United States or the State of California.

☐

Plaintiff or defendant who is in a county jail, a Department of Corrections and Rehabilitation facility, or a county juvenile facility now. I am not being paid to appear. I have not appeared in small claims court for other people more than 4 times in this calendar year.

☐

Defendant who is an owner of real property and is not a resident of California. I am not being paid to appear. I have not appeared in small claims court for other people more than 4 times in this calendar year.

☐

Spouse or registered domestic partner. My spouse or registered domestic partner and I are both listed on this claim and agree that either of us can appear for the other. I ask the court to decide that I may appear on behalf of my spouse or registered domestic partner.
- 4

☐ I ask the court to allow me to appear to assist a plaintiff or defendant who cannot properly present their claim or defense without my assistance because *(explain why the person needs assistance, keeping in mind that this form is not confidential)*:
- 5

I declare under penalty of perjury under California state law that the information above is true and correct.

Date:
- Type or print your name
- Sign your name
-
- Request for Accommodations.** Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the trial. Contact the clerk’s office or go to courts.ca.gov/forms for *Disability Accommodation Request* (form MC-410). (Civil Code, § 54.8.)
- Rev. January 1, 2026
- Authorization to Appear
(Small Claims)
- SC-109, Page 2 of 2
- For your protection and privacy, please press the Clear button after you have printed the form.
- Print
- Save
- Clear